

HOUSE No. 3210

The Commonwealth of Massachusetts

PRESENTED BY:

Alice Hanlon Peisch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act making the fair share tax more equitable.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alice Hanlon Peisch</i>	<i>14th Norfolk</i>	<i>1/17/2025</i>

HOUSE No. 3210

By Representative Peisch of Wellesley, a petition (accompanied by bill, House, No. 3210) of Alice Hanlon Peisch relative to taxable income under the fair share tax, so-called. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making the fair share tax more equitable.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 3 of chapter 62 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting at the end thereof the following:-

3 D. In determining taxable income for the 4 per cent surtax required by Article 44 of
4 Amendments of the Constitution, income derived from the sale of a primary residence shall be
5 exempt, unless the gain is equal to or greater than two and a half million dollars. The term
6 “primary residence” shall mean a principal home or domicile occupied by a household member
7 not less than 9 months prior to the date of sale of the primary residence. The exemption in this
8 part shall be in addition to any other exemption provided for in this section.